

MAGISTRATE COURT OF _____ COUNTY, GEORGIA

Date Filed _____

Case No: _____

Plaintiff(s) Name, Address

vs.

DISPOSSESSORY PROCEEDING

ANSWER

Defendant(s) Name, Address

(Please note and then use another sheet(s) for additional space, as needed.)

- _____ I am the Defendant. I am filing an Answer I state the following in response to Plaintiff's claim in this lawsuit:
- _____ I do not have a landlord tenant relationship with the plaintiff.
- _____ My landlord did not give me the proper notice that my lease or rental agreement was terminated in accordance with the terms of our lease. The landlord did not properly demand that I move before filing the lawsuit.
- _____ My landlord terminated my lease without a valid reason.
- _____ I do not owe any rent to my landlord.
- _____ I offered and had the money to pay my rent on or before the date I usually pay, but my landlord refused to accept it.
- _____ My landlord would not accept my rent, correct late fees and the court costs. I had all the money to pay.
- _____ My landlord failed to repair the property. This failure has lowered its value or resulted in other damages more than the rent claimed.
- _____ I am a residential tenant. This is my first dispossession action. I am paying all my rent, late fees and court costs to the clerk.
- _____ My landlord is not entitled to evict me or secure a money judgment for the following additional reasons: (attach if necessary)

COUNTERCLAIM - (Please note and then use another sheet(s) for additional space, as needed.)

- _____ My landlord owes me _____ for the following reason(s):
- _____ My landlord failed to repair my property. Due to this failure, its value has been reduced _____ each month for _____ months.
- _____ Since my landlord failed to make requested repairs, I made these repairs. I made these repairs that cost _____ I have all my receipts. I will bring the receipts and all documents concerning these payments to my trial.
- _____ My landlord's failure to repair resulted in damages of _____ to my person and/or property.

WHEREFORE, I ask this Court to:

- (a) Dismiss Plaintiff's lawsuit with all costs assessed against Plaintiff.
- (b) Enter a judgment in my favor and against Plaintiff
- (c) Plus attorney's fees in the amount of _____ pursuant to _____; and
- (d) Grant such other and further relief as the Court deems just and proper.

Signature of Defendant filing answer/ Attorney

Bar # _____

This ____ day of _____, 20__

DEFENDANT

DEPUTY CLERK

EACH DEFENDANT MUST FILE THEIR OWN ANSWER. Attorneys may file answers for more than one defendant, pro se litigants cannot.